

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Susan Scurich et al v. Northgate Cottages at Silverado, Inc. et al

24CV000076

MOTION TO BE RELIEVED AS COUNSEL

APPEARANCE REQUIRED

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Platte River Insurance Company v. William Deem et al

24CV000384

MOTION FOR AWARD OF ATTORNEY FEES

TENTATIVE RULING: the motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

“Code of Civil Procedure section 1021 provides the basic right to an award of attorney fees.” (*Xuereb v. Marcus & Millichap, Inc.* (1992) 3 Cal.App.4th 1338, 1341 (*Xuereb*)). “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties....” (Code Civ. Proc., § 1021; see also Code Civ. Proc., § 1033.5, subd. (a)(10)(A) [allowing attorneys’ fees authorized by contract as costs].)

By Minute Order of December 4, 2025 (12/4/25 M.O.), the Court found that “Plaintiff, Defendant Kimberton Wines, LLC (as Applicant and Indemnitor) and Defendant William Deem (as Indemnitor) entered into that certain General Indemnity Agreement (Agreement) attached as Exhibit A to the Declaration of Justin Hinton (Hinton Decl.).”

That Agreement provides, in part, that “Indemnitors, individually, and jointly and severally with Applicant and all other Indemnitors, agree to hold CIC and/or PR harmless from all Loss and to pay back or reimburse CIC and/or PR for all Loss.” (*Id.* at ¶ 2.) The Agreement defines Loss to include, “any payment or expense either incurred or anticipated by CIC and/or PR in connection with any Bond or this agreement, including: . . . any other expense in connection with claims, potential claims, or demands; claim fees, penalties; interest; court costs; collection agency fees; costs related to taking, protecting, administering, realizing upon, or releasing collateral; and attorney’s fees (including but not limited to those incurred in defense of bond claims or pursuing any rights of indemnification or subrogation and in obtaining and enforcing any judgment arising from those rights.” (*Ibid.*)

“Civil Code section 1717 provides that ‘[r]easonable attorney’s fees shall be fixed by the court.’...[T]his requirement reflects the legislative purpose ‘to establish uniform treatment of fee recoveries in actions on contracts containing attorney fee provisions.’ [Citation.] Consistent with that purpose, the trial court has broad authority to determine the amount of a reasonable fee. [Citations.]” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1094-1095.) The party moving for an award of attorneys’ fees bears the burden of showing “that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (*Id.* at 816.)

The Court finds, from the Declaration of Edward Rubacha, that the tasks undertaken by counsel for Plaintiff in this action were reasonably necessary to the conduct of the litigation. (See *id.* at ¶¶ 3, 5-22, and Exh. A.) The Court further finds that the amounts of time spent on each task were reasonable. Finally, the Court finds that the amount charged by counsel is consistent with fees typically charged in the community for similar work.

Based on the foregoing, the Motion is GRANTED.

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Luis Sepulveda v. David Abreu Vineyard Management, Inc.

24CV000839

STATUS OF PAGA SETTLEMENT COMPLIANCE

APPEARANCE REQUIRED. The February 11, 2026 Order provides: “Upon completion of the Settlement, the Settlement Administrator will provide written certification of the completion to the Court and counsel for the Parties by August 3, 2026 which shall be filed with the Court on or before July 13, 2026.” (¶ 16.) There is nothing new in the Court file since February 11, 2026. Appearances are required to update the Court on the status of compliance with the settlement terms.

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Ron Peters v. Garrett Lloyd Brumley et al

25CV000149

CROSS-DEFENDANT ACME CHASSIS FACTORY’S DEMURRER TO THE FIRST AMENDED CROSS-COMPLAINT OF GARRETT LLOYD BRUMLEY, CRYSTAL A. BRUMLEY, dba THREE FIVE CUSTOMS; CONSOLIDATED PERFORMANCE INC. dba THREE FIVE CUSTOMS

TENTATIVE RULING: The demurrer is SUSTAINED. Cross-Complainants are granted 10 calendar days leave, from entry of the instant ruling, to amend the operative cross-complaint. (See Rules of Court, rule 3.1320(g).)

A. PRELIMINARY MATTERS

Cross-Defendant Acme Chassis Factory LLC, a Texas Limited Liability Company (Acme), erroneously sued and served as Acme Chassis Factory, demurs, pursuant to Code of